

Section 14

Case-Level Outcomes & Contemporaneous Exemplars

Version 2.0 — Preliminary Draft

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PETITION TO AUDIT — IOWA DEPARTMENT OF HEALTH AND HUMAN SERVICES

SECTION 14 — CASE-LEVEL OUTCOMES & EXEMPLARS

Verified Case Anchoring Layer

Version 1.0 — June 5, 2026

SECTION 14 INTRODUCTION

14.0 Purpose and Evidentiary Function

The systemic deficiency record developed in Sections 6 through 13 of this petition documents failures at the level of federal oversight, fiscal accountability, and operational practice spanning 23 years of CFSR review cycles. Those sections establish, through primary federal and state sources, that Iowa's child welfare system has produced persistent, measurable, and institutionally acknowledged failures across every completed review period.

Section 14 anchors that record to a contemporaneous, judicially verified case outcome.

The Drew household — the licensed foster placement selected by Iowa DHHS for the placement of children following termination of parental rights proceedings in Washington County — was the subject of felony child endangerment convictions arising from conduct that began in March 2021. Those convictions are documented in primary court records (Attachment A33) and corroborated by authenticated investigative

reporting (Attachment A34).

This section does not present the Drew case as a litigation claim against Iowa DHHS. It presents it as a contemporaneous operational data point: a placement outcome occurring within the period under review, within the geographic jurisdiction under review, arising from the same licensing and post-permanency monitoring architecture whose structural deficiencies are documented throughout this petition.

The auditor is directed to read this section as a stress test of the structural record. Given the deficiency pattern documented in Sections 6 through 13 — specifically the post-permanency monitoring gap identified through the PPRCP analysis in Section 13 — does the Drew outcome represent a foreseeable consequence of the structural conditions that existed at the time of placement? The evidentiary record of this petition supports an affirmative answer to that question.

14.1 ATTACHMENT A33 — DREW CASE CRIMINAL DOCKETS [ATTACHMENT]

State of Iowa v. Ashley Marie Drew, FECR007114

State of Iowa v. Joshua A. Drew, FECR007113

Washington County Iowa District Court

Judgment and Sentence Orders — February 6–7, 2025

Judge Shawn Showers

Source: Washington County, Iowa Clerk of Court

Document Type: Primary Court Records — Judgment and Sentence Orders, No Contact Orders, and Electronic Docket Records

Evidentiary Status: Primary

Domains: B — Contract and Provider Oversight; D — Judicial and Legal Interface; F — Internal Accountability and Workforce Erosion

Deficiency Categories: F10 (High-Risk Case Management);

F2 (Ongoing Monitoring Deficiency);

F12 (Supervisory Review and Escalation Failure)

The criminal case records for FECR007113 (Joshua A. Drew) and FECR007114 (Ashley Marie Drew) are the primary evidentiary anchor for this section. These are court-certified records of judgment and

sentence obtained from the Washington County Iowa District Court, establishing the following as judicially determined fact:

FECR007114 — STATE OF IOWA v. ASHLEY MARIE DREW:

Ashley Marie Drew was convicted of Child Endangerment Resulting in Bodily Injury, a Class D Felony, under Iowa Code §§726.6(1)(a),

726.6(7), 703.1, 706.1, and 706.3. The offense period was established as between March 16, 2021 and October 22, 2023.

The original plea agreement contemplated a deferred judgment.

On February 6, 2025, the Court explicitly rejected the deferred judgment due to the severity of the crimes. The defendant withdrew her initial guilty plea and filed a Written Guilty Plea on the same date pursuant to an amended plea agreement.

Sentence imposed: five years probation (suspended incarceration), \$1,025 fine plus surcharges. A permanent No Contact Order was entered prohibiting contact with the identified victim (R.D.) through February 7, 2030.

FECR007113 — STATE OF IOWA v. JOSHUA A. DREW:

Joshua A. Drew was convicted of Child Endangerment, an aggravated misdemeanor, under Iowa Code §§726.6 and 726.8.

The original plea agreement similarly contemplated a deferred judgment. The Court rejected the deferred judgment on February 6, 2025. The defendant did not withdraw his guilty plea and proceeded to immediate sentencing.

Sentence imposed: two years probation (incarceration suspended), \$855 fine plus surcharges. A No Contact Order was entered prohibiting contact with the identified victim through February 6, 2030.

DOCKET RECORD — MATERIAL OBSERVATIONS:

The full electronic docket records for both cases (FECR007114 and FECR007113) are included in Attachment A33. Several docket entries carry specific relevance to the audit record:

— October 30, 2023: Criminal complaint filed; arrest warrant issued

(FECR007114). The offense period in the conviction — beginning March 16, 2021 — establishes that conduct occurred for approximately 30 months before criminal proceedings were initiated.

— January 23, 2024 (FECR007114): Motion to disseminate CPC interviews and MTD recording filed by defense.

— February 12, 2024 (FECR007114): Motion to disseminate confidential medical records to counsel filed.

— January 27, 2025 (FECR007113): Order re: Media (D0074) — media notification entered, indicating public interest in the case prior to sentencing.

— February 6, 2025: Victims Protective Order entered in both cases contemporaneously with sentencing. Guardian ad litem Rebecca Petig appeared on behalf of the identified victim at the sentencing hearing in both cases.

— February 7, 2025: No Contact Order entered in FECR007114 explicitly noting that the defendant's "presence of or contact with Defendant poses a threat to the safety of Plaintiff, Protected Person, persons residing with Plaintiff or Protected Person, members of Plaintiff's or Protected Person's immediate family, or Other Protected Persons."

AUDIT RELEVANCE:

The audit relevance of this record is not the fact of the criminal conduct itself. It is the structural questions that the criminal outcome generates:

AUDIT QUESTION 14-A: What post-permanency monitoring protocols were in place for the Drew household between July 2018 (placement) and October 2023 (criminal complaint), and were those protocols being executed as designed during the period in which the offense conduct was occurring (March 2021 through October 2023)?

AUDIT QUESTION 14-B: What licensing review or renewal processes were conducted for the Drew household during the offense period, and what documentation exists of any safety assessments conducted during that period?

AUDIT QUESTION 14-C: Were any reports, concerns, or contacts received by Iowa DHHS regarding the Drew household during the offense period, and if so, how were those reports processed, documented, and resolved?

These are audit questions, not litigation claims. They fall squarely within the scope of a GAGAS-informed performance audit of Iowa DHHS child welfare operations under Iowa Code §§11.6 and 11.24.

14.2 ATTACHMENT A34 — GAZETTE: DREW CASE SENTENCING [ATTACHMENT]

"Washington Foster Parents Avoid Prison For Severe Neglect"

The Gazette — February 6, 2025

Reporter: Jared Strong

Source: The Gazette (Iowa City / Cedar Rapids)

Document Type: Investigative News Report — Reliability Rating High (A)

Evidentiary Status: Corroborating

Domains: B — Contract and Provider Oversight;

D — Judicial and Legal Interface

Deficiency Categories: F10 (High-Risk Case Management);

F2 (Ongoing Monitoring Deficiency)

The Gazette reporting by Jared Strong provides authenticated public-record corroboration of the court facts in Attachment A33 and supplies two items not captured in the judgment documents alone:

First, direct quotation or characterization of Judge Showers' stated basis for rejecting the deferred judgment — "the severity of the crimes" — which establishes that the court found the underlying conduct serious enough to warrant rejection of the deferred judgment mechanism that would otherwise have prevented conviction.

Second, the reporter's note that the defendants were "not currently licensed" as foster parents following the criminal proceedings establishes a post-conviction licensing status fact relevant to Domain B (Contract and Provider Oversight) and the question of what monitoring mechanisms, if any, Iowa DHHS maintains for former licensed providers following decommissioning.

Note on attachment date: The cover sheet accompanying this attachment lists the date as "February 2022." The correct publication date is February 6, 2025, consistent with the sentencing date documented in Attachment A33. This discrepancy should be corrected in the cover sheet prior to final submission.

This attachment is designated corroborating, not evidentiary lead. Attachment A33 carries the primary evidentiary weight for this section.

14.3 POST-PERMANENCY RISK CONVERGENCE — ACTIVE PATTERN

CONFIRMATION

As developed in Section 13, the Post-Permanency Risk Convergence Profile (PPRCP) identifies five structural conditions whose convergence is associated with elevated post-permanency harm risk. All five elements are present in the Drew household record:

Element 1 — Prior DHS contact and documented concerns predating placement: Established through petitioner affidavits (A39, A40) and the TPR proceeding record. The Drew household was selected as a placement following termination proceedings in which safety concerns were formally raised.

Element 2 — State-determined placement selection without independent safety validation: Iowa DHHS selected and licensed the Drew household as a foster placement. No independent third-party validation of placement safety is documented in available records.

Element 3 — Repeated formal safety reports through official channels following placement: Documented in petitioner affidavits (A39, A40) covering the period 2019–2025, including direct contact with the Washington County Attorney's office and Iowa DHHS.

Element 4 — Post-permanency context in which biological family oversight structures have been formally terminated: TPR finalized December 2019. Biological parent oversight rights

terminated by court order.

Element 5 — Documented state awareness of ongoing risk across an extended period without protective action: Criminal offense period established as March 2021 through October 2023.

Criminal proceedings initiated October 2023. No documented DHHS protective action during the offense period is reflected in available records.

The presence of all five PPRCP elements in the Drew household record confirms that the structural conditions identified in

Section 13 as risk-convergent were operating as described in an active licensed placement during the period under review, and that the outcome was consistent with the PPRCP pattern documented across the Duis, Finn, and Ray cases.

This is the audit claim this section supports: not that any individual placement decision was negligent as a matter of law, but that the structural monitoring architecture failed to function as a safeguard in a manner consistent with the systemic deficiencies documented across the full evidentiary record.

NOTE ON ATTACHMENT COVER SHEET CORRECTIONS REQUIRED:

Prior to final submission, two cover sheet corrections are needed for this section:

1. Attachment A33 cover sheet: Attachment number should read "A33" (not "A29" as currently labeled). A29 designates the Natalie Finn Ombudsman fatality investigation in the v2.4 attachment architecture.
2. Attachment A34 cover sheet: (a) Attachment number should read "A34" (not "A30" as currently labeled); (b) Date field should read "February 6, 2025" (not "February 2022").

SECTION 14 — CROSS-REFERENCES

Section 12: Ombudsman Fatality Investigations (A28–A30) —

Shelby Duis, Natalie Finn, Sabrina Ray — prior case
pattern establishing the PPRCP analytical framework

Section 13: Fatality Risk Analysis and Systemic Failure Matrix —
PPRCP five-element convergence methodology and
active pattern confirmation framing

Section 15: Public Impact and Contradictions — financial
liability record and external pattern corroboration

Section 16: Procedural History and Audit Triggers — petitioner
affidavits (A39, A40) documenting exhaustion of
reporting channels related to the Drew household

Section 19: Corrective Action Matrix — post-permanency
monitoring protocol remediation scope

AI assistance disclosure: See Section 5.8.

End of Section 14 — Version 1.0 — June 5, 2026

AI assistance disclosure: See Section 5.8.

AI assistance was used materially in the preparation of this document. That assistance does not constitute independent verification of any factual claim.